

ance shall be made of any lands or tenements by which a trust or confidence shall or may *arise or result by the implication or construction of law*, or be transferred or extinguished by an act or operation of law, then and in every such case such trust or confidence shall be of the like force and effect as the same would have been if that statute had not been made; anything thereinbefore contained to the contrary notwithstanding."

Lord Hardwicke's opinion.—Lord Hardwicke upon this clause observed, "I am now bound down by the Statute of Frauds to construe nothing a resulting trust but what are there called trusts by operation of law; and what are those? Why, First, when an estate is purchased in the name of one person but the money or consideration is given by another; or, Secondly, where a trust is declared only as to part, and nothing said as to the rest, in which case what remains undisposed of will result to the heir-at-law. I do not know any other instance besides these two, where the Court has declared resulting trusts by operation of law, unless in cases of fraud, and where transactions have been carried on *malâ fide*" (b).

Mr. Fonblanque's opinion.—Upon this opinion of Lord Hardwicke, Mr. Fonblanque has made the following just remarks:—"This construction of the clause of the Statute of Frauds restrains it to such trusts as arise by *operation of law*, whereas it clearly extends to such as are raised by *construction of Courts of equity*; as, in the case of an executor or guardian renewing a lease, though with his own money, such renewal shall be deemed to be in trust for the person beneficially interested in the old lease. It is also observable, that the first instance stated by his Lordship of a resulting trust is not so qualified as to let in the exceptions to which the general rule is subject, and the second instance is only applicable to a *will*, whereas the doctrine of resulting trusts is also applicable to **conveyances*" (a). As [*194] to the latter part of this criticism it may be observed that while Atkyns makes Lord Hardwicke speak of a *will*

(b) *Lloyd v. Spillet*, 2 Atk. 150.

(a) 2 Tr. Eq. 116, note (a).